

Landlord and Tenant Obligations in Michigan

In order for a lease to remain valid both landlord and tenant must honor their mutual obligations or else the other party can be released from the contract.

Landlord's Duties

A landlord owes the tenant quiet enjoyment of the property, and must refrain from entering unless agreed to by the tenant or in case of an emergency. Aside from that the landlord must:

- Maintain an inventory checklist of the premises condition at the beginning and ending of occupancy and list any damages and give the tenant a copy of the list
- Maintain the premises in a habitable condition for the duration of the lease
- Warn tenant of any potential dangerous problems that occur (holes, electrical problems, flooding, etc.)
- Allow tenants to sublease or assign their lease, unless otherwise specified in the lease

Tenant's Duties

Now let's look at some of the tenant's obligations:

- Maintain the premises in a habitable condition for the duration of the lease, except for minor wear and tear
- Use the premises for only legal purposes and conforms to local law
- Pay rent in a timely fashion
- Must vacate the premises at the end of the lease
- Warn guests of any potential dangerous problems that occur (holes, electrical problems, flooding, etc.)

Many leases will be far more specific as to what each party's responsibilities are and even go so far as to define what exactly is meant by habitable or timely. Because there is some variation to be expected though and not every lease spells everything out all nice and neat the law of negligence steps in. This asserts that the landlord or tenant has a duty of care imposed on them to take actions that any reasonable and prudent individual would exercise under similar circumstance, failure to do so would be considered negligence and the resulting party could be held liable for damages or evicted from the property.

If a landlord is negligent in their duty of care, it is possible in some locations for a tenant to withhold rent unless the problem is corrected, or even claim corrective eviction and abandon the lease.